



KIOWA TRIBE
P.O. Box 369 • Carnegie, Oklahoma • 73015
Phone: (580) 654-6338 • Fax: (580) 654-1788
OFFICE OF THE LEGISLATURE

RESOLUTION NUMBER KL-CY-2025-022

**FIRST AMENDMENT TO THE AUDIT AUTHORIZATION, ACCEPTANCE, AND
RESPONSIBILITY ACT**

At a duly called Session of the Legislature of the Kiowa Tribe held this 11th day of October, 2025. The following resolution and law were adopted.

WHEREAS, the Kiowa Tribe (the “Tribe”) is organized under a constitution, duly adopted and approved by the voters of the Tribe on April 17, 2017 and approved by the U.S. Secretary of the Interior (“Secretary”)(the “Constitution”); and

WHEREAS, the Kiowa Constitution pursuant to Article VI, Section 6 (a) The Legislature shall have the power to make laws and resolutions in accordance with the requirements of the Constitution. All legislative actions by the Legislature shall be embodied in a written law or resolution. All actions by the Legislature shall be made by a majority vote of the Legislature present, unless otherwise specified in this Constitution. Laws and resolutions which have been enacted shall remain valid until amended or repealed; and

WHEREAS, the Kiowa Tribe is a sovereign nation and has been so since time immemorial; and

WHEREAS, the Tribe exercises full enjoyment of the inherent powers of government, including self-determination and autonomy over internal affairs encompassing Tribe citizens, lands, and resources; and

WHEREAS, on April 17, 2017, qualified voters of the Tribe ratified the Kiowa Constitution as “the supreme law of the land”; and

WHEREAS, the Kiowa Legislature is vested with the agency to pass laws and resolutions pursuant to Article VI, Section 6(a) of same Constitution; and

WHEREAS, on June 21, 2024, the Legislature enacted the AUDIT AUTHORIZATION, ACCEPTANCE, AND RESPONSIBILITY ACT by Resolution KL-CY-2024-009; and

WHEREAS, the Legislature has determined that additional clarifications are necessary to bolster fiscal transparency and accountability within the Tribe government;

NOW, THEREFORE, BE IT RESOLVED that the Legislature hereby adopts the FIRST AMENDMENT TO THE AUDIT AUTHORIZATION, ACCEPTANCE, AND RESPONSIBILITY ACT.

CERTIFICATION

The foregoing Resolution KL-CY-2025-022 was duly voted upon by the Legislature on October 11, 2025, at a Legislative Regular Session CII-(102), with a vote of (6) in favor and (0) opposed, (0) abstaining, and (1) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus

Michael Primus
Speaker of the Legislature



LEGISLATIVE RESOLUTION – KL-CY-2025-022

Sponsors: Cole DeLaune, District 4

Co-Sponsors:

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héñgyádàu
Kyle Ataddlety District 1	X			
Michael Primus District 2				X Out of District
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7	X			

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. KL-CY-2025-022 was presented to the Chairman of the Kiowa Tribe on the 21st day of October, 2025, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.


Michael Primus
Speaker of the Legislature

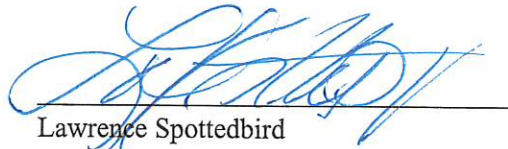
CHAIRMAN'S ACTION:

☐ APPROVED

☒ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

see Attached

On this 30th day of October, 2025.


Lawrence Spottedbird
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the ____ day of _____, 2025.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

Reasons for my Veto on Resolution Number KL-CY-2025-022 “First Amendment to the Audit Authorization, Acceptance, and Responsibility Act.

I have reviewed the Kiowa Tribe’s amended Audit Authorization, Acceptance, and Responsibility Act of 2024; I identified a few deviations from recognized best practices in financial oversight and audit governance. These are outlined below:

1. Audit Acceptance Authority Concentrated in the Executive

Currently, the Chairman holds sole authority to accept the Tribe’s annual audit, despite the Legislature receiving the report in advance.

Best practice recommends a shared or co-approval process to reinforce the separation of powers and ensure mutual accountability between branches of government.

2. Legislative-Directed Audits Lack Independence Safeguards

While the Legislature may initiate audits, the amendment does not establish clear protocols to ensure the independence of auditors engaged at their direction.

This omission could raise concerns about impartiality. It is advisable to codify safeguards such as auditor selection criteria and conflict-of-interest rules.

3. Ambiguity in Payment Obligations and Fiduciary Duty

The amendment requires tribal businesses or entities to fund financial services engaged by the Legislature, even though the fiduciary duty of the financial professional lies solely with the Legislature.

This arrangement could lead to legal or ethical tension if the paying entity disputes the scope or findings. Best practices suggest clearly defined contractual terms and transparent disclosure of fiduciary roles to all parties involved.

Finally, this proposed law grants Legislative authority not authorized in the Kiowa Tribe’s Constitution.

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2025-0XX

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1				
Michael Primus District 2				
Timothy Satepauhoodle District 3				
Cole DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

CERTIFICATION

The foregoing Legislative Order, KLO-CY-2025-00X was duly voted upon by the Legislature on _____, 2025, at a Legislative Override Order Session with a vote of _____ in favor and _____ opposed, and _____ abstaining, _____ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

Section 1.1 Short Title

This enactment shall be known as the FIRST AMENDMENT TO THE AUDIT AUTHORIZATION, ACCEPTANCE, AND RESPONSIBILITY ACT.

Section 1.2 Purpose

The purpose of this Amendment is to reinforce and bolster the architectural framework of the AUDIT AUTHORIZATION, ACCEPTANCE, AND RESPONSIBILITY ACT of 2024 by implementing additional mechanisms to maximize fiscal transparency and accountability within Tribe government and/or any Tribe-affiliated entity.

Section 1.3 Findings

The Legislature hereby finds that:

- (a) the Constitution requires the Tribe to conduct an annual financial audit by an independent auditor; and
- (b) the annual audit is an important indicator of the Tribe's accounting practices and financial health, and is a valuable tool to safeguard the financial assets of the Tribe; and
- (c) the Chairman of the Tribe oversees and directs the Finance Department personnel, engages the independent auditor, and is vested with the executive authority and responsibility to ensure that the annual audit is conducted and accepted by the Tribe and that a plan to address all audit findings is developed and implemented.
- (d) At any time, the Chairman may conduct an Executive Inquiry into any tribal department, program or commission. Should be inquiry findings warrant a deeper investigation through an audit, the Chairman may initiate an internal, external, or forensic audit. The Chairman would need to work with the Kiowa Legislature to allocate funding support within the tribal budget.
- (e) the Legislature may initiate a Legislative Inquiry through a legislative order that initiates a document request from any tribal department, program or commission. All requested information would be sent to the Kiowa Legislative Administrator and Legislative Clerk.
- (f) following the Legislative Inquiry and document request, the Legislature may direct the Chairman to conduct an internal, external, or forensic audit if warranted by the outcome of the Legislative Inquiry findings, subject to budgetary requirements
- (g) If requested information is not provided in response to an information request in a legislative inquiry, or if audit findings merit, in the opinion of a majority of the legislature, the need for more information, the legislature may authorize the Speaker of the Legislature to petition the Trial Court

for the issuance of a subpoena, seeking specific information or the attendance of a person to provide testimony at a Legislative Hearing.

(h) At any time, the Legislature through legislative order may initiate a public Legislative Hearing where tribal employees shall have the right to protest and defend the allegations against him or her, including the right to cross-examine any witnesses who testify against him or her, and shall have the right to be represented by an attorney or other advocate licensed to practice law before the Kiowa Tribe's courts; all findings and recommendations of the legislative hearing will be released as public records, with redacted information which may be protected as private under any federal or tribal law.

Section 1.4 Contract Authorization for Independent Auditors

(a) The Chairman is hereby authorized to negotiate and execute a contract with external and independent qualified auditors to conduct and complete an annual financial audit for the Tribe in accordance with the requirements of the Constitution.

(b) The Chairman shall provide a copy of the annual audit report to the Legislature prior to the Chairman's acceptance of the audit and shall direct the auditor to make an in-person presentation to the Legislature regarding the annual audit.

(c) The Chairman is authorized to accept an audit on behalf of the Tribe.

Section 1.5 Amendment

The Legislature hereby amends the Audit, Authorization, Acceptance, and Responsibility Act of 2024 by adding the following:

Section 1.6 Legislative Authority

The Legislature may engage a financial professional for advice concerning the finances and assets of Tribe, any tribal businesses, and/or any tribally owned or affiliated entities. Such advice may include, but is not limited to, determining accurate balances, performing valuations, reviewing business plans, reviewing profit and loss statements, reviewing audits, performing partial audits, performing forensic reviews, including audits and forensic audits, collecting documents and information, interviewing persons and investigating financial management. Such as list is not exhaustive, and the Legislature may engage a financial professional for any reason it deems necessary.

Section 1.7 Payment Obligations

When the Legislature engages a financial professional to provide advice or other services concerning any tribal business or any Tribally owned or affiliated entity, the fees and costs for such

advice and services shall be paid by the business or entity for which financial services were obtained by the legislature. When the Legislature engages a financial professional to provide advice or other services concerning the Tribal government itself, the cost for such services shall be paid out of funds appropriated to the Legislature in the Tribe's annual budget. However, in every instance the financial professional shall only owe a fiduciary duty to the Legislature and not to any entity who may make payments for their services.

Section 1.8 Information

When the Legislature engages a financial professional to provide advice or other services, the information obtained by the professional shall be held in strict confidence. The financial professional's only client in the matter will be the Legislature, and any and all documents, communications and information obtained shall be held in accordance with the accountant-client privilege. Each legislator, legislative staff and legislative attorneys may access such information as needed. Information obtained by the financial advisor may only be released to the members of the Tribe or to the public upon a majority vote of all Legislators (present or absent) to release the information (4 or more votes).